TEMBA MOYO
versus
CRESTLIFE ENTERPRISES (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
TAKUVA & CHIKOWERO JJ
HARARE; 19 & 23 March 2026

Civil Appeal

S Chihombe , for the appellant
T Mwenje, for the respondent

CHIKOWERO J:

[1] This is an appeal from the judgment of the Magistrates Court sitting at Harare in terms whereof the appellant was ordered to pay US $ 4 804 or the Zig equivalent for services rendered by the respondent to the appellant. The amount in question was found to be the costs incurred by the respondent in servicing and reoairing the appellant's motor vehicle, namely a Mazda Bongo registration number AFU 3908. The appellant was also ordered to pay interest and the costs of suit.

[2] This appeal turns on whether the lower court was correct in finding that the parties entered into a contract of repair and service of the motor vehicle in question.

[3] The appellant disputed the existence of such a contract. The respondent contended otherwise.

[4] We are satisfied that the lower court erred in fact in finding that a contract ever existed between the parties.

[5] Going through the record of proceedings there is no evidence on the date when the so called contract was entered into, who represented the respondent in contracting with the appellant and the terms of such a contract. Indeed, there is no evidence of any agreement on the scope of the service and repair work to be done on the motor vehicle in question as well as the amount of money to be paid to the respondent for such work or how that amount would be ascertained.

[6] Things were made worse by the following circumstances. The respondent relied on what it said was a verbal contract. Further, the respondent's position was that verbal contract was not entered into between the respondent and the appellant directly. Instead, what was found by the lower court was that the respondent entered into that contract with one Samudzimu, who was said to be the appellant's agent and had been authorized by the appellant to contract on behalf of the appellant.

[7] There was no credible evidence of such authority.

[8] What was not in dispute was that the appellant had entered into a verbal contract with Samudzimu for the latter to use the appellant's vehicle to ferry pupils to and from St George's School and to remit a certain amount, on a daily basis to the appellant. The parents of those pupils would pay the appellant for use of the motor vehicle, through Samudzimu. The appellant testified that he agreed with Samudzimu that all that the former required by way of payment was US$ 30 per day and that the costs of repair and service of the motor vehicle would be borne by the parents.

[9] Indeed, it was common cause that after the appellant had delivered his motor vehicle to Samudzimu the former purchased three new tyres and a battery so that these would be fitted onto the motor vehicle. But the appellant was reimbursed the sum of US$300, being the cost of those tyres and the battery. That is only explicable on the basis that the cost of repairs and maintenance of the motor vehicle were not the appellant's baby once he had concluded the verbal contract between Samudzimu and himself.

[10] Despite filing a number of affidavits as part of a bundle of documents where the assertion was made that the appellant paid the sum of US$ 900 to the respondent, through Samudzimu, to reduce the repair and maintenance bill to the amount granted *a quo,* no *viva voce* evidence was led by the respondent's witnesses to prove that which we have said was contained in those affidavits. Nobody spoke to those affidavits. Instead, what stands on record is evidence that it is Samudzimu who paid the sum of US$900 to the respondent. The respondent's witnesses testified that they neither knew nor dealt with the appellant, despite the claim in one of the affidavits that the appellant was so pleased with the work done on his motor vehicle that he instructed the respondent to carry out further repair work on the motor vehicle in respect of the clutch.

[11] The respondent's case was poorly presented at the trial. A bundle of documents was produced as an exhibit. Nobody spoke to any particular document on that bundle. What was done was akin to dumping that bundle on the lower court and leaving it to that

tribunal to make what it could of that exhibit. That is not how a civil trial is conducted. The bundle consisted of, among other things, quotations and invoices none of which bore the respondent's name. They did not bear the appellant's name either. We are is unable on a perusal of those documents to determine how the amount granted *a quo* is arrived at. A job card forms part of the respondent's bundle of documents. It reflects the appellant as the customer. It is undated. It lists a whole host of things as work carried out on the appellant's motor vehicle. But the total due on that jobcard is US$5 014. That is not the amount claimed and granted *a quo*. Nobody gave a breakdown of the US$ 4 804 claim. There is neither invoice, job card nor quotation reflecting the sum of US$ 4 804.

[12] We think Ms Mwenje had no option but to concede that she had difficulties in directing our attention to evidence proving the existence of a contract between the patrties to this appeal, the terms of such a contract and quantification of that which was granted *a quo.* Perhaps that is why she said the terms of the verbal contract between the appellant and Samudzimu were that the parents would bear the cost of minor repairs to the motor vehicles while the cost of the major repairs were to be borne by the appellant. This is not a submission. It is evidence from the bar. That is impermissible. Nobody gave evidence to that effect at the trial not even Samudzimu himself (he was called to testify for the respondent). For completeness' sake, we point out that no parent was called by the respondent to testify on the extent of the parents' liability vis-à-vis payment of the repair, maintenance and service costs of the motor vehicle in question.

[13] In his book BUSINESS LAW IN ZIMBABWE, JUTA AND COMPANY< LTD 1998, RH CHRISTIE says at p 56:

> "In order to ascertain the terms of the contract it is first necessary to hear evidence on what passed between the parties, in speech, writing or conduct, and then to decide how much of what was said, written or done is to be classified as part of the terms of the contract."

We take the view that this judgment has demonstrated that there is nothing on the record remotely resembling the terms of a contract entered into between the parties. The reason for this is that there was no contract entered into by and between the parties to begin with. At the end of the day, one cannot ascertain terms of a contract that never was.

[14] In the result, IT IS ORDERED THAT:

1. The appeal is allowed.
2. The judgment of the court a quo is set aside. It is substituted with the following:

"The claim is dismissed with costs,"

3. The respondent shall pay the appellant's costs of suit

CHIKOWERO J :…….

TAKUVA J:……..

Saunyama Dondo, appellant's legal practitioners.
Mundia and Mudhara, respondent's legal practitioners